

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

May 24, 2010

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Spiker and Mr. Valdez. Absent: Dr. Rinne. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Erik Rasmussen, Deputy City Attorney. The pledge of allegiance was recited.

George Parks, Director of the Wyoming Association of Municipalities (WAM), recognized Mrs. Johnna Lissman & the 9th Grade Class at Carey Jr. High School and the City of Cheyenne as a recipient of WAM's Community Hero Award for a special community enhancement project. Jason Sanchez, Director of Grounds and Facilities Maintenance, Parks & Recreation Dept., advised Carey Jr. High School's 9th grade class has assisted the City with a community clean-up day for the past 13 years providing sweeping, cleaning and debris pickup. Ms. Lissman expressed appreciation to the City, WAM, Carey Jr. High School administration and students, and City staff involved for providing an opportunity to students to combine government education with civic projects. Mayor Kaysen recognized and thanked Ms. Lissman and Carey Jr. High for their involvement in the community.

Expression of Appreciation to Mayor's Youth Council and State of the Youth Report. Mayor Kaysen and Jan Spires, Mayor's Youth Council coordinator, commended members of the 2009-2010 Mayor's Youth Council and presented each with a certificate and gift of appreciation. Youth Council members recognized were: Kelsey James, Alissa Alyward, Kadi Davis, Samantha Heitsch, Josh Herr, Karolyn Hopfensperger, Dean Jackson, Ashley Ortiz, Taylar Perez, Katie Poffenbarger, Gary Saylor, and Mishayla Still. Kelsey James, Youth Council President, provided a State of the Youth report and described various accomplishments and issues they supported during the past school year, and commented on members' positive interactions and learning experiences through involvement with local government issues. Mayor Kaysen expressed appreciation to the members for their time, commitment and dedication as Youth Council members.

Recognition of Public Works Project of the Year 2010 Award from the American Public Works Association, Rocky Mountain Chapter, to the City of Cheyenne for the Dry Creek Sheridan Reach Flood Control Improvement Project. Doug Vetter, City Engineer, advised it was an honor to receive this award for a very worthy project that addresses very high life safety and property damage concerns along Dry Creek. Mr. Vetter recognized the engineering firm of Ayres Associates and general contractor, Tarco, that assisted with the project and presented Mayor Kaysen with the plaque that had been received.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its

normal sequence on the agenda.) Upon request by Ms. Broyles, and pursuant to support received by Mr. Collins and Mr. Brown, agenda item #30(a) was removed from the Consent Agenda. Upon request by Mr. Collins, and pursuant to support received by Mr. Pierson and Mr. Brown, agenda item #29(b) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on May 10, 2010. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on May 17, 2010. Motion (per Consent Agenda) carried.

Minutes from Special Meetings of the Governing Body on May 4, 2010 and May 18, 2010. Mayor Kaysen and Ms. Case advised they would not be participating in the discussion or vote as they were not participants of the governing body for which the Special Meetings were held. Mr. Pierson moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case and Mayor Kaysen who did not vote.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Upon inquiry regarding a voucher payable to Express Towing and Recovery (\$1,755.00), Doug Vetter, City Engineer, provided information on the services provided, which involved towing of vehicles in conjunction with a crack seal street project. Upon inquiry regarding vouchers payable to several bands for upcoming performances at the Depot Plaza for the Hispanic Festival, City Treasurer Barb Dorr and Mayor Kaysen provided information on funding sources that reimburse the City for the cost of the bands. Mr. Collins declared a conflict of interest (business interest involving the Bicycle Station) and did not participate in discussion and the vote. Upon inquiry, Ms. Dorr reviewed vouchers payable to Needs, Inc. (\$2,000), CDBG grant funds for food to qualified recipients; ARMA (Association of Records Managers and Administrators) International (\$190.00), membership dues; and WAM (Wyoming Association of Municipalities) (\$190), annual conference registration fee. Upon inquiry, Mayor Kaysen explained the WAM voucher amount is an early registration rate paid from the current FY2010 budget. Ms. Dorr clarified the City’s current membership in WAM is effective for the remainder of this fiscal year. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Collins who did not vote.

Mayor Kaysen opened a public hearing for the purpose of receiving public comments on the proposed vacation of dedicated public right-of-way of Civitan Place between Cribbon Ave. and Dey Ave., the dedicated alley located in Civitan Park between West Leisher Road and Civitan Place, and the dedicated public park known as Civitan Park, in Arp Addition, 5th Filing, generally located south of West Leisher Road between Cribbon Ave. and Dey Ave., consisting of approximately 54,325.3 sq. ft., for the intended purpose of making the property available for public school or public educational purposes. Todd Feezer, Assistant Director, Parks and Recreation Dept., displayed a site map of the proposed property to be vacated and explained the purpose of vacating the property is to allow for a new school to be built within the park area. He stated a land trade between the City and school district would also be involved. Dennis Auken, LCSD#1, clarified the property to the City being considered for exchange is 5 acres in Sun Valley park located on 12th St. He advised an appraisal had been done for both properties to be traded and adjustments have been made for an equal trade. He advised there is a proposed Greenway along Cribbon Ave. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

“An Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential-Established District to MUB Mixed Use with Business Emphasis District for Lots 1 and 2; and the north 66-feet of Lots 3 and 4, Block 195, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of E. 23rd Street and Russell Avenue).” Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Mr. Collins. Ms. Ash moved to amend by substitute which inserts a new section #4 to read as follows: “*Placement of up to a 750 square foot addition and/or accessory building would be permitted*” and by renumbering remaining sections, seconded by Mr. Collins. Discussion followed on proposed use for the building as a funeral home and the need for an addition to the building for a garage to store hearses. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case and Mr. Valdez voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#3891)

“An Ordinance appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said city and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the fiscal year beginning July 1, 2010, and ending June 30, 2011.” Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. Under other business, Mr. Spiker questioned the inclusion of the City’s WAM membership dues in the FY2011 budget with Barb Dorr, City Treasurer, clarifying the annual LEADS payment, WAM dues and Chamber of Commerce dues are included in the budget ordinance.

“An Ordinance approving and establishing revised water rates, as recommended by the Board of Public Utilities to be effective January 1, 2011.” Mr. Brown moved to approve on second reading, seconded by Ms. Broyles. Mr. Brown moved to amend by substitute to amend the rate increase to 3.4% , seconded by Ms. Broyles. Upon inquiry, Tim Wilson, BOPU Director, clarified the BOPU approved a 6% rate increase based on the All Urban Consumer Price Index which encompasses all urban consumers water and sewage maintenance and takes into account rates nationwide. He provided information the Board considered relative to determining the amount of increase, which includes review of cost areas during budget preparations, specific infrastructure projects and personnel costs. Concern was expressed regarding the basis for the proposed 6% increase, and the type of Consumer Price Index information utilized relative to the original intent of providing for annual review and/or revisions to rates. Discussion included index information (not specific to the state or region) used in ascertaining the percentage of rate increase; infrastructure and BOPU budget needs; increased cost of employee health and pension funding; amount of BOPU water and sewer reserves; projected revenue to be received if a 3.4% increase is implemented, and concern with maintaining infrastructure, BOPU loans for current and future specific projects (re: Southern Transmission project) and consumer rate increase effect. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“An Ordinance approving and establishing revised sewer rates, as recommended by the Board of Public Utilities to be effective January 1, 2011.” Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute to amend the rate increase to 3.4%, seconded by Mr. Pierson. Motion to amend carried. Voting “yes” – all members

of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“An Ordinance approving and establishing revised tap fees, system development fees, pump station fees and other related fees recommended by the Board of Public Utilities to be effective January 1, 2011.” Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute to amend the rate increase to 3.4%, seconded by Ms. Broyles. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“An Ordinance approving and establishing revised administrative fees, service charges and penalties as recommended by the Board of Public Utilities to be effective January 1, 2011.” Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute to amend the amount of the rate increase to 3.4%, seconded by Ms. Broyles. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“An Ordinance approving and establishing revised septic waste dump rates and commercial waste rates recommended by the Board of Public Utilities to be effective January 1, 2011.” Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute to amend the amount of the rate increase for certain areas to 3.4%, seconded by Mr. Pierson. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“An Ordinance amending Ordinance No. 3880 defining the Terms and Conditions of employment for non-uniformed employees of the City of Cheyenne” -- referred to Finance Committee (sponsors - Ms. Broyles and Mr. Valdez).

“An Ordinance amending Ordinance No. 3881 defining the Terms and Conditions of employment for uniformed employees of the Cheyenne Police Department” -- referred to Finance Committee (sponsors - Ms. Broyles and Mr. Valdez).

“An Ordinance amending the City of Cheyenne’s Sanitation fee schedule” -- referred to Finance Committee (sponsor - Mr. Brown).

“An Ordinance vacating the 15-foot alley within Civitan Park, two parcels of Civitan Park and the 60-foot right-of-way of Civitan Place between Cribbon and Dey Avenues, Arp Addition, Fifth Filing, Cheyenne, Wyoming (located between Cribbon and Dey Avenues, south of W. Leisher Road)” -- referred to Public Services Committee (sponsor - Ms. Ash).

“A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Crow Creek Water Reclamation Subdivision, situated in a portion of the SE¼ of Section 3, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of S. Industrial Road, east of S. College Drive).” Ms. Ash moved to adopt with Planning Commission recommendation #1, seconded by Mr. Collins. Comments followed regarding paving of the street into the facility and who utilizes the road. Upon inquiry, Tim Wilson, Director, BOPU, clarified the road primarily serves the employees and uses of the City of Cheyenne Water Reclamation facilities. Motion carried. Voting “yes” – all members

of the governing body present. (#5211)

[CA] “A Resolution supporting the City of Cheyenne’s application for Transportation Enhancement Activities - local (TEAL) funds for landscaping & enhancements on the East Pershing Blvd. Reconstruction Project and authorizing the Mayor to sign an agreement with the State if awarded” -- referred to Finance Committee (sponsors - Ms. Broyles, Mr. Pierson and Mr. Brown).

[CA] “A Resolution determining that conditions for annexation required by Wyoming Statute §15-1-402 exist for the property described as a parcel of land being situated in a portion of Tracts 7 and 10, Dell Range Addition 2nd Filing; Lot 3 Smithson View, together with a portion of Carla Drive, Thomas Road, and College Drive, Laramie County, Wyoming (generally located north of and adjacent to Carla Drive, between Ridge Road and College Drive)” -- referred to Public Services Committee (sponsor - Ms. Ash).

[CA] “A Resolution increasing the level of funding placed into the Solid Waste Management Fund for the specific purpose of providing funding to pay for solid waste tipping fees, increased recycling costs, and paying for the lease purchase of solid waste equipment” -- referred to Finance Committee (sponsor - Mr. Collins).

Preliminary Plat for The Bluffs Subdivision, 8th Filing, situated in a portion of the SW¹/₄ NW¹/₄ of Section 21, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Ogden Road, between Apache Street and Plain View Road). Ms. Ash moved to acknowledge receipt with staff recommendation #1, seconded by Mr. Collins. Upon inquiry regarding connectivity to the west of the development (Plain View to Converse Ave.) pursuant to discussion at the Public Services Committee meeting, Nathan Beauheim, Engineering Services Director, advised staff is not in receipt of that information from the developer. It was noted the item relates to the Preliminary Plat, not a final plat action. Motion carried. Voting “yes” – all members of the governing body present.

County Preliminary Plat for Deerhaven Subdivision, a replat of Tract 6 and a portion of Tract 7, Allison Tracts; Tract 2, Hermann Meadows Subdivision; Lot 2 and a portion of Lot 1, Block 1, Ley Subdivision, Laramie County, Wyoming (located between E. Fox Farm and E. Jefferson Roads, east of S. Greeley Highway). Kelly Hefner, Benchmark Engineers and agent for the applicant, spoke in support of acknowledgment and clarified the purpose of the plat is to develop the north/south roads in the area. Mr. Spiker declared a conflict of interest and vacated Council Chambers. Ms. Ash moved to acknowledge receipt with Laramie County Planning staff recommendations #1-5, Laramie County Planning Commission recommendations #6 and 7, and City staff recommendations #10, 11, 12, 14, 15 and 18, seconded by Mr. Collins. Comments followed regarding annexation agreements involving adjacent land owners, and community growth. Mr. Collins moved to postpone to June 28, 2010, seconded by Ms. Broyles. Mr. Hefner advised they would have no objection to the postponement and stated there are a lot of issues involving annexation that they would like to discuss during the postponement time frame. Upon inquiry, John Knepper, Asst. City Attorney, clarified the annexation agreements were signed as covenants to the property and as part of the creation of the South Side Water and Sewer District, binding present and future property owners. Upon further inquiry, Mr. Knepper advised if the properties are annexed there would be adequate contiguity to the City. Paula Qualls, Board member of South Side Water and Sewer District, stated it was her understanding that individual property owners could not annex, and that any annexation had to involve the entire District. She advised many of the current property owners have no idea about the annexation agreement/requirement, and spoke in support of the motion to postpone. It was advised further

concerns regarding recommendations were raised at the Public Services Committee and should also be addressed during the postponement. Motion to postpone carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers.

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the 2010-2011 Concert Season. Motion (per Consent Agenda) carried. (revenue to City in the amount of \$3,200.00 per performance) (#5552)

Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for use of the Civic Center for the Youth Education Concerts. It was advised the annual agreement involves an event that is part of the Symphony’s education program to 5th and 6th graders in Laramie County. Chloe Illoway, Cheyenne Symphony, explained the program provides an opportunity for student education and participation in music. Mr. Brown moved to approve in an amount not to exceed \$6,585.00, seconded by Mr. Valdez. Upon inquiry, Ms. Illoway advised the money assists with payment of professional musicians. Concern was expressed with use of City funds for the activity and City vs. school district’s responsibilities involving this type of educational program. Ms. Illoway advised the Symphony pays the City for use of the Civic Center facility and provided information on funding and support of music education through the school district. Comments followed in support of the concerts. Motion carried. Voting “yes” – all members of the governing body present. (#5553)

[CA] Contract between the City of Cheyenne and Delta Dental of WY for dental coverage for full time city employees. Motion (per Consent Agenda) carried. (#5554)

[CA] Authorization for the Mayor to sign State Historic Preservation Office (SHPO) Certified Local Government grant award # 56-10-00000.03 in the amount of \$16,680.00 for Class II Cultural Resource Survey of the Belvoir Ranch property. Motion (per Consent Agenda) carried. (#5555)

[CA] Amendments to Agreement Nos. 5436-5458 for Human Services in the community between the City of Cheyenne and American Red Cross; Boys and Girls Club of Cheyenne, Wyoming, Inc.; CASA of Laramie County; Cheyenne Health and Wellness Center (Dental Access and Unified Human Service Eligibility); CIHN (Cheyenne Interfaith Hospitality Network); Climb Wyoming; Comea, Inc. (Basic Emergency Shelter Services and Transitional Living); Consumer Credit Counseling Services; Laramie County Community Partnership (Connections Corner and Cheyenne Area Centralized Pharmacy); Meals on Wheels of Cheyenne, Inc.; Needs, Inc.; Peak Wellness Center, Inc.; Retired and Senior Volunteer Program; Safe Harbor, A Children's Justice Center; Safehouse/Sexual Assault Services, Inc.; Southeast Wyoming Foster Grandparent Program (Helping Community and Helping Youth); Special Friends of Cheyenne; Stride Learning Center, and Wyoming Senior Citizens, Inc. -- referred to Finance Committee.

[CA] Contract for auditing services between the City of Cheyenne and McGee, Hearne & Paiz, LLP for the fiscal years ending June 30, 2010, 2011, and 2012 -- referred to Finance Committee.

[CA] Grant Agreement between the Wyoming Business Council, Business and Industry Division, State Energy Office and City of Cheyenne for American Rescue and Recovery Energy Efficiency and Conservation Block Grant Retrofit 2 -- referred to Finance Committee.

Consideration of Bid #M-15-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River of Cheyenne, WY, for the FY 2010 City Overlay project. Mr. Brown moved to accept the bid in an amount not to exceed \$1,062,173.00, seconded by Mr. Pierson. Upon inquiry regarding the Vandehei portion of the project, Doug Vetter, City Engineer, discussed the following: Drainage issues on Vandehei, west of Yellowstone; necessity for overlay work; schedule for WYDOT's new Vandehei interchange; proposal for new center medians and removing calming islands (a/k/a "side-ins"); geometric design; traffic, safety and maintenance issues involving the calming islands; opportunity to improve street design features; concern with setting back the project time frame, and modifying the project without re-bidding. Comments followed both for and against the calming islands, and slowing of traffic. Joe Wiesen, Knife River representative, clarified they would be willing to work with leaving the calming islands in place and could work around them to get the project done. Upon inquiry regarding other locations of calming islands in Cheyenne, Mr. Vetter advised the only other location they have calming islands is on 12th Street and clarified there has to be a demonstrated need before these are installed. Discussion followed on snow plow issues with navigating around the islands, infrastructure, calming islands and pros and cons, potential alterations to the project, and long term cost effect regarding maintenance. Upon inquiry, Mr. Vetter advised they will not get the best overlay trying to work around the side-ins and paving around them will be a problem. Upon inquiry, Jim Elias, Public Works Director, advised it is a challenge working around the islands with plows, street sweepers and Sanitation trucks, indicating they can not plow between the islands and curbs. Upon inquiry, Erik Rasmussen, Deputy City Attorney, advised if the bid documents had specific specifications intermingled for all of the projects (3), the integrity of the bid could be compromised if it were modified for one of the projects. Concerns were expressed with changing the Vandehei project as bid, and discussion was held on utilization of calming islands; change orders, value engineering and contract modifications; fairness to bidders; intermingling of all projects in bids received, pedestrian and traffic safety issues. Mr. Collins moved to postpone to June 14, 2010 to allow for legal review of the issues raised during discussion and the bid, seconded by Ms. Broyles. Motion to postpone carried. Voting "yes" – all members of the governing body present with the exception of Ms. Case and Mayor Kaysen voting "no".

[CA] Consideration of Bid #M-22-10 for a contract between the City of Cheyenne and JTL Group, Inc., d/b/a Knife River of Cheyenne, WY, for the 2009 Cheyenne Transit Program Bus Stop Upgrades project -- referred to Finance Committee.

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2010 Wyoming Association of Municipalities convention. Motion (per Consent Agenda) carried (Mayor Kaysen Official Voting Delegate; Councilman Spiker Alternate Delegate).

Announcement was made of a public hearing to be held Monday, June 14, 2010 at 6:00 p.m. in City Council Chambers for proposed budgets for the City of Cheyenne and Board of Public Utilities for fiscal year 2011.

Under other business, Ms. Broyles announced that a Calcutta will be held Thursday, June 3, 2010 beginning at 7:00 p.m. at Uncle Charlie's Lounge, 6001 Yellowstone Road, Cheyenne, WY, in conjunction with the annual Uncle Charlie's DONE golf tournament to be held June 5, 2010 at the Airport Golf Club (15% of proceeds to benefit the Cheyenne Boys and Girls Club).

Comments followed regarding standing water observed at the Romero Park parking lot after the last snow storm. Todd Feezer, Assistant Director, Parks and Recreation Dept., clarified mitigation work in the area has been done to reduce or eliminate any standing water in the future. In response to a comment regarding water flooding the park located near Sunrise School, Mr. Feezer advised irrigation systems in the parks are on a computer controlled system and he was not aware of any water problems but would check into the matter.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:50 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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